

Court No. - 21

Case :- WRIT - C No. - 12358 of 2023

Petitioner :- Vanshraj Bind

Respondent :- Chairman Cum Managing Director And 4 Others

Counsel for Petitioner :- Majahar Ali

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri Sushil Kumar Pandey has accepted notice on behalf of respondents 1, 2 and 3 but he is not present even in revised call.

Put up as fresh on 20/4/2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery certificate.

Learned counsel for the petitioner shall inform Sri Sushil Kumar Pandey about the order passed today.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.4.2023

skv

Court No. - 21

Case :- WRIT - C No. - 12358 of 2023

Petitioner :- Vanshraj Bind

Respondent :- Chairman Cum Managing Director And 4 Others

Counsel for Petitioner :- Majahar Ali

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri Sushil Kumar Pandey, who is alleged to have received notice on behalf of respondents 1, 2 and 3 is present. He states that neither his clerk nor he himself has received notice of the petition and incorrect endorsement has been made on his behalf.

Counsel for the petitioner is allowed to serve the counsel who is in panel of Power Corporation Ltd. and counsel for Electricity Distribution Division, Gyanpur Bhadohi within a week.

List on 28/4/2023.

When matter is listed, name of Sri Sushil Kumar Pandey shall not be shown as counsel for the respondent.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 20.4.2023

skv

Court No. - 21

Case :- WRIT - C No. - 12358 of 2023

Petitioner :- Vanshraj Bind

Respondent :- Chairman Cum Managing Director And 4 Others

Counsel for Petitioner :- Majahar Ali

Counsel for Respondent :- C.S.C.,

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the petitioner is not present even in revised call.

In the interest of justice, adjourned to 8.5.2023 as a fresh case.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.4.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 12358 of 2023

Petitioner :- Vanshraj Bind

Respondent :- Chairman Cum Managing Director And 4 Others

Counsel for Petitioner :- Majahar Ali

Counsel for Respondent :- C.S.C.,

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the recovery citation dated 31.1.2023, issued by respondent no. 5 for recovery of a sum of Rs. 7,84,913/-, plus other charges from the petitioner in a case of theft of electricity.

Sri Sushil Kumar Pandey, learned counsel appearing on behalf of respondent nos. 1, 2 and 3, states that the impugned recovery proceedings have been withdrawn and the respondent-Corporation will issue fresh notice to the petitioner and will pass a fresh assessment order.

Having regard to the aforesaid statement, no further direction is required to be issued by this Court.

The petition is disposed of with liberty to the respondent-Corporation to pass fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.5.2023

Jaideep/-